

Opinion of SOTOMAYOR, J.

See *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971); *Ziglar v. Abbasi*, 582 U. S. 120 (2017). The Court goes to extraordinary lengths to avoid this result: It rewrites a legal standard it established just five years ago, stretches national-security concerns beyond recognition, and discerns an alternative remedial structure where none exists. The Court's innovations, taken together, enable it to close the door to Boule's claim and, presumably, to others that fall squarely within *Bivens*' ambit.

Today's decision does not overrule *Bivens*. It nevertheless contravenes precedent and will strip many more individuals who suffer injuries at the hands of other federal officers, and whose circumstances are materially indistinguishable from those in *Bivens*, of an important remedy. I therefore dissent from the Court's disposition of Boule's Fourth Amendment claim. I concur in the Court's judgment that Boule's First Amendment retaliation claim may not proceed under *Bivens*, but for reasons grounded in precedent rather than this Court's newly announced test.

I

This case comes to the Court following the District Court's grant of summary judgment to Agent Egbert. The Court is therefore bound to draw all reasonable factual inferences in favor of Boule. See *Tolan v. Cotton*, 572 U. S. 650, 656–657 (2014) (*per curiam*). Because the Court fails to do so, the factual record is described below in some detail, in the light our precedent requires.

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Boule is a U. S. citizen who owns, operates, and lives in a small bed-and-breakfast called the Smuggler's Inn in Blaine, Washington. The property line of the land on which the inn is located touches the U. S.-Canada border. Shortly after purchasing the property in 2000, Boule became aware that people used his property to cross the border illegally in both